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CASE #	CASE NAME	HEARING NAME
CVRI2306850	BALDI vs BALDI BROS., INC.	MOTION TO TAX COSTS

Tentative Ruling: Plaintiff's Motion to Tax Costs is granted in part.

<u>Item No.</u>	<u>Allow</u>	<u>Tax/Strike</u>
1 (Filing and Motion Fees)	\$2,030.00	\$1,224.75
11 (Court reporter fees)	\$4,051.00	\$645.06
13 (Models, enlargements, photocopies)	\$0	\$1,197.86
15 (Other)	<u>\$0</u>	<u>\$2,397.86</u>
Total	\$6,081.00	\$5,465.53

Plaintiff brings this motion pursuant to Cal. Rules of Court ("CRC"), Rule 3.1700, which provides that a prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of the mailing of the entry of judgment An extension for filing this document can be given by the court or through an agreement by the parties. "[T]he court may extend the times for serving and filing the cost memorandum or notice of motion to strike or tax costs for a period not to exceed 30 days." (*Id.* at (b)(3).)

The losing party may dispute any or all of the items in the prevailing party's costs memorandum. (CRC, Rule 3.1700(b)). Technically, a motion to strike challenges the entire costs bill whereas a motion to tax challenges particular items or amounts. But, the terms are often used interchangeably and there is no difference in the procedural rules. (CRC, Rule 3.1700(b).)

Unlike the costs memorandum, a motion to tax costs based on factual matters must be supported by declarations. (*County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113-1114.) For instance, where "reasonableness" is challenged, conclusory allegations that the item was "neither necessary nor reasonable" do not satisfy the objecting party's burden. (*Id.*; *Jones, supra.* at 1266.) If the items on their face appear to be proper charges, the verified costs memorandum is prima facie evidence of their propriety, and the burden is on the opposing party to show that they were not reasonable or necessary. (*Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776; *Jones, supra.* at 1266.)

Pursuant to CCP §1033.5(c)(1), certain items are allowable costs, including filing and motion fees, service of process fees, and deposition costs. Costs must be both reasonable in amount and reasonably necessary to the conduct of the litigation. (CCP §1032; §1033.5(c)(2) and (3).) To obtain a costs award, the prevailing party must serve and file a memorandum of costs. (CRC, Rule 3.1700(a).) Supporting documentation such as bills or invoices is not required, unless costs are put in issue by a motion to tax costs. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.)

CCP §1033.5 also provides a list of costs that are allowable and those that are not. CCP §1033.5(c)(4) provides that any items not identified as allowable and not specifically

identified as prohibited, may be permitted at the Court's discretion. "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (CCP §1033.5(c)(2).)

In ruling on a motion to tax costs, the court must first determine "whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show [the cost] to be unnecessary or unreasonable." (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking the expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

Plaintiff challenges specific entries in the MOC, which entries are analyzed below:

Item No. 1 (Filing Fees): Under CCP § 1033.5(a)(1), filing fees are allowable costs, which must also be reasonably necessary to the conduct of the litigation and reasonable in amount. (CCP § 1033.5(c).) Plaintiff challenges \$1,224.75 out of a total of \$3,254.75. Notably, Individual Defendants did not submit a worksheet itemizing any of the costs in the motion. As a result, Plaintiff asserts that the total allowed should be \$2,030.00, which represents: 1) \$450 first appearance/answer filing fee multiplied by the three Individual Defendants (\$1,350.00); 2) \$500 to file an MSJ; 3) three motion filing fees of \$60 for a motion to quash subpoena, ex parte to continue trial, and motion for nonsuite (\$180). Plaintiff asserts that the remaining \$1,224.75 is not explained or supported. Plaintiff speculates that these Defendants are claiming *electronic filing fees*, which are already being claimed in Item No. 14. However, this is inaccurate.

In response, Individual Defendants assert that out of the \$1,224.75, \$818.75 are the filing fees for their Petition for Writ of Mandate. They argue it is recoverable even though the Petition was denied because they were the prevailing parties in the underlying action and by operation of CRC Rule 8.493(a)(1)(B). However, Plaintiff points out that under CRC, Rule 8.493(a)(2), "The opinion or order resolving the proceeding must specify the award or denial of costs." This did not occur here. (see 11/13/25 Order of Court of Appeal.) Thus, \$818.75 is stricken/taxed.

In addition, Individual Defendants assert that the remainder (\$406) was for "various stipulations, the motion for judgment, and E-filing fees. (Dec.Keeney ¶ 2, Ex. "A".) Exhibit "A" is a document entitled "All Costs by Matter", which itemizes the filing fees. Significantly, other than the filing fees for the Petition (discussed above), the entries in Exhibit "A" exceed the costs charged by the court, which may include messenger fees or some other unexplained charges. However, no invoices have been provided in support. As a result, the court tax/strike \$1,224.75 and allow \$2,030.00.

Item No. 11 (Court reporter fees): CCP § 1033.5(b)(5) provides that transcripts of court proceedings not ordered by the court are not allowable as costs. (see also, *Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 58 [court reporter fees are a different expense than transcripts].) Plaintiffs' MOC contains an amount for "Court reporter fees as established by statute" in the amount of \$4,696.28. Plaintiff challenges \$645.06 on the basis that no explanation nor supporting documentation was provided.

In response, Individual Defendants argue that this cost was for deposition transcripts for depositions noticed by Plaintiff, which are recoverable. (CCP § 1033.5(c)(4).) They also argue that the transcripts were used for numerous filings and were therefore, reasonably necessary.

In reply, Plaintiff asserts that Individual Defendants have improperly included deposition costs that should have been stated in Item No. 4. Plaintiff also asserts that the amounts asserted in the Opposition cannot be reconciled with the MOC amounts (e.g., a \$900 transcription charge for a purported hearing on 11/5/25 that never occurred.) (Request for Judicial Notice, Ex. “1”). Further, Plaintiff is unaware of any transcripts of court proceedings ordered by the Court (Item No. 9.)

Nonetheless, Plaintiff acknowledges that \$4,051.22 are accounted for, and are not being challenged. Thus, \$4,051.22 is allowed and \$645.06 is stricken/taxed.

Item No. 13 (Models, enlargements, and photocopies of exhibits): Plaintiff challenges \$1,197.86 in photocopy costs. Costs for exhibits including costs to rent equipment, are allowed if they “were reasonably helpful to aid the trier of fact.” (CCP § 1033.5(a)(13).) Plaintiff asserts that such costs must have been presented to the trier of fact. (*Segal v. ASICS America Corp.* (2022) 12 Cal.5th 651, 665.) Plaintiff had the burden to prepare trial binders and exhibit binders for the Court and defense counsel. (Dec.Perez ¶ 16.) No models or enlargements were used at trial. (*Id.* ¶ 17.) Plaintiff concludes photocopying costs were unnecessary and should be taxed/stricken.

In response, Individual Defendants assert that they still needed to prepare trial binders, and that such costs are recoverable in the court’s discretion. (*Segal, supra.* at 668.)

In reply, Plaintiff argues that *Segal* indicates the court has discretion to award such costs where an adequate showing has been made but, Individual Defendants made no such showing. And, no invoice was provided indicating what was contained in defense counsel’s separate binders or how the \$1,197.86 was calculated. Plaintiff’s arguments are more persuasive here. Thus, this item is taxed/stricken.

Item No. 15 (Other): Plaintiff also challenges \$2,397.86 as there is no supporting evidence. In response, Individual Defendants assert that \$1,197.86 was for document production costs, which is the same item claimed in Item No. 13 above. As such, it is duplicative. They also claim the remaining \$1,200 was for their expert, which costs they “withdraw.” Thus, the entire amount on the MOC is taxed/stricken.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2306850	BALDI vs BALDI BROS., INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Final Judgment was entered on 5/26/26; the court lacks jurisdiction to compel arbitration.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2400857	A. vs MIMMS	MOTION TO STRIKE COMPLAINT ON 3RD AMENDED COMPLAINT

Tentative Ruling: Defendant Canyon Lake Property Owners Association’s (“Defendant” or “CLPOA”) Motion to Strike is denied.